



Appeal Decision

Site visit made on 18 August 2026

by **J Heppell BA (Hons) MA MRTPI**

an Inspector appointed by the Secretary of State

Decision date: 21st September 2026

Appeal Ref: 6009189

Littlewood Farm, Jail Lane, Biggin Hill, Bromley TN16 3AX

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a failure to give notice within the prescribed period of a decision on an application for planning permission.
 - The appeal is made by Mr Ram Xhebexhia against the Council of the London Borough of Bromley.
 - The application Ref is 25/05448/FPA.
 - The development proposed is demolition and removal of existing stables, tack room and hay barn and erection of three detached double storey dwellings with visitor's car parking spaces, associated landscaping and use of existing access onto Jail Lane.
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Decision

1. The appeal is allowed and planning permission is granted for demolition and removal of existing stables, tack room and hay barn and erection of three detached double storey dwellings with visitor's car parking spaces, associated landscaping and use of existing access onto Jail Lane at Littlewood Farm, Jail Lane, Biggin Hill, Bromley TN16 3AX in accordance with the terms of the application, Ref 25/05448/FPA, subject to the conditions in the attached schedule.

Preliminary Matters

2. The appeal relates to a planning application that was not determined by the Council within the prescribed period. The Council subsequently confirmed that had it been in a position to determine the application, it would have granted permission, noting that there is an extant permission for a single storey dwelling and detached garage with a similar total footprint¹.
3. Following the submission of the appeal, the revised National Planning Policy Framework (Framework) was published on 17 August 2026. The main parties were afforded the opportunity to comment on the implications of the new Framework for the proposal.
4. There is a minor discrepancy in the submitted plans in that an upper floor flank window serving a bathroom is shown on the floor plans but not on the elevations. This has not affected my assessment of the proposal, and I deal with its implications below.

Main Issue

5. In light of the above, the main issue in this appeal is whether the revised Framework has implications for the proposal with particular reference to the Green Belt.

¹ LPA reference 23/01254/FULL1

Reasons

6. The site is in the Green Belt. The Framework states that inappropriate development is, by definition, harmful to the Green Belt and should not be approved except in very special circumstances. The Framework further establishes that development in the Green Belt should be regarded as inappropriate, subject to a number of exceptions set out in Policy GB7.
7. Policy 49 of the London Borough of Bromley Local Plan January 2019 (LP) protects the Green Belt from inappropriate development, including the construction of new buildings unless, amongst other things, it is for the complete redevelopment of previously developed sites, whether redundant or in continuing use, which would not have a greater impact on the openness of the Green Belt or the purpose of including land within it. This part of Policy 49 broadly conforms with part (e) of Policy GB7 of the Framework, although the latter explicitly additionally encompasses a material change of use to residential, and the test it applies is that of *substantial* harm to the openness of the Green Belt [my emphasis].
8. The Council's Delegated Decision report confirmed that the existing buildings on the site were previously used for equestrian purposes, and therefore the site comprises previously developed land. The floorspace of the proposed dwellings would be similar to the existing buildings and, whilst no volumetric calculations were supplied, the Council considered that, because it consolidated the built form on the site, the proposal would have no greater impact on the openness of the Green Belt despite increasing the height of the buildings. In so doing, the proposal would accord with both the spatial and visual aspects of openness set out in Planning Practice Guidance.
9. The proposal therefore satisfies the criteria in Policy GB7(e) of the Framework, and would not be inappropriate development in the Green Belt.
10. In respect of the other matters assessed by the Council – the dwellings' design and standard of accommodation, their relationship with neighbours, access arrangements, impact on trees and protected species, and biodiversity net gain - there are no changes to the Framework which conflict with the relevant policies of the LP or indicate that any aspect of the proposal is unacceptable.
11. For these reasons, the proposal would accord with Policy 49 of the LP, the aims of which I have outlined above, and other relevant policies of the LP referred to in the Council's Delegated Decision report.

Conditions

12. The Council has recommended that a number of conditions be imposed. The appellant has not raised objection to any of the suggested conditions. In assessing the need for the conditions, I have had regard to the policy requirements contained in the development plan and the tests set out in the Framework.
13. In the interests of certainty, I have imposed a time limit condition and a condition listing the approved plans.
14. In order to maximise the use of sustainable drainage systems to attenuate surface water run-off, a surface water drainage scheme should be approved prior to commencement.

15. To protect the character and appearance of the area, the slab level of the dwellings should be approved prior to commencement.
16. To minimise environmental impacts, a construction and environmental management plan should be approved prior to commencement. A separate wheel wash condition is not necessary.
17. To protect ecological and arboricultural interests, a badger exclusion zone and tree protection measures must be in place prior to commencement.
18. In the interests of the character and appearance of the area, landscaping and lighting schemes should be approved and implemented.
19. To ensure consistency between plans and elevations, an elevational drawing showing an upper floor bathroom window is required.
20. To comply with local standards, appropriate provision for refuse storage and parking must be made.
21. In the interests of highway safety, the maximum achievable visibility splays should be provided and thereafter maintained.
22. To ensure a satisfactory appearance, external materials should accord with those proposed by the appellant, and the existing buildings must be demolished and removed.
23. In the interests of biodiversity, the enhancement measures proposed by the appellant must be incorporated in the development.
24. To ensure suitable air quality, gas boiler emissions must be controlled.
25. In order to maintain the openness of the Green Belt, it is appropriate in this instance to remove permitted development rights, so as to maintain control over extensions and alterations which could otherwise increase the floor space of the development beyond that of the existing equestrian buildings which are to be demolished.

Conclusion

26. For the reasons given above the appeal should be allowed.

J Heppell

INSPECTOR

Schedule of Conditions

1. The development to which this permission relates must be begun not later than the expiration of 3 years, beginning with the date of this decision notice.
2. The development hereby permitted shall not be carried out otherwise than in complete accordance with the plans approved under this planning permission:

Proposed Block Plan	Drawing Rev A 17/11/25
Plans & Elevations	Drawing No 742-05
All Three House Elevation	Drawing No 742-06
3. (a) Prior to commencement of the development hereby approved (excluding any ground clearance or demolition) a scheme for the provision of surface water drainage shall be submitted and approved in writing by the local planning authority.
(b) Before the details required to satisfy Part (a) are submitted an assessment shall be carried out of the potential for disposing of surface water by means of a sustainable drainage system (SuDS) to ground, watercourse or sewer in accordance with drainage hierarchy contained within the London Plan Policy SI13 and the advice contained within the National SuDS Standards.
(c) Where a sustainable drainage scheme is to be provided, the submitted details shall provide information about the design storm period and intensity, the method employed to delay (attenuate) and control the rate of surface water discharged from the site as close to greenfield runoff rates (21/s/ha) as reasonably practicable and the measures taken to prevent pollution of the receiving groundwater and/or surface water.
(d) The drainage scheme approved under Parts (a), (b) and (c) shall be implemented in full prior to first occupation of the development hereby approved.
4. Prior to commencement of development (excluding demolition) details of the proposed slab levels of the building(s) and the existing site levels shall be submitted to and approved in writing by the Local Planning Authority. The development shall be completed strictly in accordance with the approved levels.
5. No development shall commence on site (including demolition) until such time as a Construction and Environmental Management Plan has been submitted to and approved in writing by the local planning authority. As a minimum the plan shall cover:
 - (a) Dust mitigation and management measures commensurate with a medium risk site and in accordance with <https://iaqm.co.uk/guidance>
 - (b) The location and operation of plant and wheel washing facilities
 - (c) Measures to control demolition and construction noise including, where applicable, noise trigger levels and monitoring and a plan to show where the nearest noise sensitive premises are in relation to the site
 - (d) Details of construction traffic movements including cumulative impacts which shall demonstrate the following:
 - (i) Rationalise travel and traffic routes to and from the site as well as within the site.
 - (ii) Provide full details of the number and time of construction vehicle trips to the site with the intention and aim of reducing the impact of construction related activity.
 - (iii) Measures to deal with safe pedestrian movement.
 - (iv) Full contact details of the site and project manager responsible for day-to-day management of the works.

- (v) Parking for operatives during construction period.
 - (vi) A swept path drawings for any tight manoeuvres on vehicle routes to and from the site including proposed access and egress arrangements at the site boundary.
 - (e) Hours of operation
 - (f) Other site specific highways and environmental protection issues as requested on a case by case basis
 - (g) The development shall be undertaken in full accordance with the details approved under Parts (a)-(f).
6. Prior to any works commencing on site, an exclusion zone shall be fenced off using temporary Heras fencing during construction along the 20m buffer zone of the badger sett within the application site in accordance with the Preliminary Ecological Appraisal. This Heras fencing shall remain in place and be maintained in good condition for the duration of the construction works in accordance with the approved details. No vehicles, plant, equipment, goods, materials or any other articles or parts thereof shall be stored, displayed, repaired, serviced or assembled on the excluded area to be fenced in accordance with the approved details. No bonfires shall take place within the exclusion zone identified in the approved details.
7. Prior to the commencement of the development hereby approved (including the arrival of machinery and materials and all preparatory work), a tree protection plan shall be submitted to the local planning authority for approval. Once approved, tree protection measures in accordance with the approved tree protection plan shall be installed. Such measures shall not be moved or removed but shall be retained in situ until completion of the development and all materials and machinery have been removed from the site, unless otherwise agreed in writing by the Local Planning Authority.
8. i) Prior to commencement of above ground works details of treatment of all parts on the site not covered by buildings shall be submitted to and approved in writing by the Local Planning Authority. The site shall be landscaped strictly in accordance with the approved details in the first planting season after completion or first occupation of the development, whichever is the sooner and maintained in accordance with a Landscaping and Ecology Management Plan to be submitted in writing and approved prior to occupation of the proposed development. Details shall include:
- 1. A scaled plan showing all existing vegetation to be retained and trees and plants to be planted which shall include use of a minimum of 30% native plant species of home-grown stock (where possible) and no invasive species. This should include enhancements to the hedgerow and natural buffer as set out in the Preliminary Ecological Appraisal.
 - 2. Proposed hardstanding and boundary treatment
 - 3. Sett to be monitored regularly by a qualified ecologist and management work to ensure any native scrub species which die or are uprooted are replanted by specimens of the same species.
 - 4. A schedule detailing sizes and numbers of all proposed trees/plants
 - 5. Sufficient specification to ensure successful establishment and survival of new planting.
- (ii) There shall be no excavation or raising or lowering of levels within the prescribed root protection area of retained trees unless agreed in writing by the Local Planning Authority.

- (iii) Any new trees that dies, are removed or become severely damaged or diseased shall be replaced and any new planting (other than trees) which dies, is removed, becomes severely damaged or diseased within five years of planting shall be replaced. Unless further specific permission has been given by the Local Planning Authority, replacement planting shall be in accordance with the approved details.
- 9. (a) Prior to the commencement of above ground works details of a scheme to light the access drive and car parking areas hereby permitted shall be submitted to and approved in writing by the Local Planning Authority.
(b) The approved scheme shall be self-certified to accord with BS 5489 - 1:2003.
(c) The lighting scheme as shall be implemented in full accordance with details submitted under Part (a) before the development is first occupied and the lighting shall be permanently retained thereafter.
- 10. Prior to the commencement of above ground works, an elevational drawing showing an upper floor bathroom window shall be submitted and approved, and thereafter implemented.
- 11. (a) Prior to the commencement of any above ground works details of arrangements for storage of refuse and recyclable materials (including means of enclosure for the area concerned where necessary) shall be submitted to and approved in writing by the Local Planning Authority.
(b) The arrangements as approved under part (a) shall be completed before any part of the development hereby permitted is first occupied, and permanently retained thereafter.
- 12. Before commencement of the use of the land hereby permitted, parking spaces and turning space shall be completed in accordance with the details as set out in this planning permission and thereafter shall be kept available for such use and no permitted development whether permitted by the Town and Country Planning (General Permitted Development) Order (England) 2015 (or any Order amending, revoking and re-enacting this Order) or not shall be carried out on the land indicated or in such a position as to preclude vehicular access to the said land.
- 13. Before commencement of the use of the land hereby permitted, a plan showing the maximum visibility splays shall be submitted and approved. The approved splays shall be kept clear from obstruction in perpetuity.
- 14. The materials to be used for the external surfaces of the dwellings shall be as set out in the planning application forms unless otherwise agreed in writing by the Local Planning Authority.
- 15. Within 3 months of the first occupation of the development hereby permitted, the existing buildings shown to be removed on Drawing No HA22-221-P304 shall be demolished, and all materials and foundations shall be completely and permanently removed from the site.
- 16. (i) The recommendations outlined within the Preliminary Ecological Appraisal (PEA), including the suggested biodiversity enhancements, shall be incorporated into the permission hereby granted.
(ii) The biodiversity enhancements shall be included within construction works and permanently retained at the site thereafter.
- 17. Any gas boilers must meet a dry NO_x emission rate of <40mg/kWh.
- 18. Notwithstanding the provisions of the Town and Country Planning (General Permitted Development) (England) Order 2015 (or any Order amending, revoking and re-enacting this Order) no building, structure, extension, enlargement or alteration permitted by Class A, B, C, or E of Part 1 of Schedule

2 of the 2015 Order (as amended), shall be erected or made within the curtilages of the dwellings hereby permitted without the prior approval in writing of the Local Planning Authority.

End of schedule